

24VECV01648 24VECV01648

County: los-angeles

Division: Civil Law and Motion

Department: 107

Hearing date: 2026-08-13

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Case Number: 24VECV01648 Hearing Date: August 13, 2026 Dept: 107

SUPERIOR COURT

OF THE STATE OF CALIFORNIA

COUNTY OF LOS

ANGELES

NORTHWEST

DISTRICT

James Reed and Olga Reed, as Trustees
of the

Reed 2022 Revocable Trust, dated
October 7, 2022

Plaintiffs,

v.

Jose Pasillas, et al.

Defendants.

Case Number Department

24VECV01648 107

COURT'S [TENTATIVE]

ORDER RE:

Motion
for Summary Adjudication

[THE FOLLOWING IS A TENTATIVE RULING IN THE ABOVE CASE]:

Deny

I.
BACKGROUND

The
operative pleadings here are the third amended verified cross-complaint and
second amended verified complaint.

On
September 9, 2025, Cross-Complainants Jose Pasillas II, individually and as
Trustee of the Pasillas Family Revocable Trust u/d/t dated August 10, 2021, a
revocable trust, and Jennifer Machado Pasillas individually and as Trustee of
the Pasillas Family Revocable Trust u/d/t dated August 10, 2021, a revocable
trust filed the third amended verified cross-complaint against Cross-Defendants
James Reed, an individual, James Reed, as Trustee of the Reed 2022 Revocable
Trust, dated October 7, 2022, a revocable trust, Olga Reed, an individual, Olga
Reed, as Trustee of the Reed 2022 Revocable Trust, dated October 7, 2022, a
revocable trust, Robert Coyle, Elaine J. Coyle, and Does 1 through 60, alleging
causes of action for: (1) quiet title (appurtenant easements) by express grant;
(2) quiet title by agreed boundary; (3) quiet title (appurtenant easements) by
equitable easement; (4) quiet title (appurtenant easements) by prescription;
(5) quiet title – irrevocable license; (6) slander of title; (7) trespass; (8) contribution
re: common easement maintenance and repair; (9) abatement of nuisance; (10)
good faith improver/unjust enrichment; and (11) declaratory relief.

On
September 11, 2025, Plaintiffs James Reed and Olga Elizabeth Reed, as Trustees
of the Reed 2022 Revocable Trust, dated October 7, 2022, filed the second
amended verified complaint against Defendants Jose Pasillas, individually and
as trustee of the Pasillas Family Revocable Trust u/d/t dated August 10, 2021,
Jennifer Pasillas, individually and as trustee of the Pasillas Family Revocable
Trust u/d/t dated August 10, 2021, TH MSR Holdings LLC, and Does 1 through 10,

alleging causes of action for: (1) trespass; (2) nuisance; (3) nuisance; (4) quiet title (adverse possession); (5) quiet title (easement interference); and (6) declaratory relief.

Plaintiffs

James Reed and Olga Elizabeth Reed ("Plaintiffs") own real property located at 24345 Mulholland Highway, Calabasas, California (the "Reed Property"). (Second Amended Verified Complaint ["SAC"] ¶ 7.) Defendants Jose Pasillas, individually and as trustee of the Pasillas Family Revocable Trust u/d/t dated August 10, 2021 and Jennifer Pasillas, individually and as trustee of the Pasillas Family Revocable Trust u/d/t dated August 10, 2021 ("Defendants") own property located at 24337 Mulholland Highway, Calabasas, California 91302 (the "Pasillas Property"). (SAC ¶ 9.)

The

Reed Property, Pasillas Property, and a third property (the "Coyle Property") are adjoining properties. (Third Amended Verified Cross-Complaint ["TACC"] ¶ 23.) Access to the Pasillas Property is accessible by a driveway entering from Mulholland Highway, "which primarily belongs to the Pasillas Property[.]" (TACC ¶ 24.)

The

Pasillas Property is burdened by "an easement for ingress and egress over those portions of said Parcel 2 included within the line of that certain area shown on said map as reciprocal easement for ingress and egress for the use of Parcels 1, 2, and 3 as reserved in deeds recorded May 26, 1978 as Instrument No. 78-567616 and 78-567617" (the "Reciprocal Easement"). (SAC ¶ 13.) There is a gate to access the western portion of the Reed Property (the "Reed Gate"). (SAC ¶ 16.) Until recently, Defendants permitted Plaintiffs to enter the Pasillas Property to use the Reed Gate. (SAC ¶ 17) Defendants then "unilaterally and without authority to do so, placed a locked gate and a fence on the Driveway and more specifically that portion of the Driveway which sits upon the Reciprocal Easement." (SAC ¶ 19.) Due to the gate and fence, Plaintiffs cannot access the western portion of the Reed Property with a vehicle because the Reed Gate is now inaccessible. (SAC ¶ 19.)

The

previous owner of the Reed Property owned the Pasillas Property, the Coyle Property, and the Reed Property as a single parcel before subdividing them. (TACC ¶¶ 23, 45.) A chain link fence acts as a barrier between the Pasillas

Property and the Reed Property. (TACC ¶ 46.) “The Boundary Fence has been in place since before Pasillas acquired the Pasillas Property and the Reeds acquired the Reed Property. The shape of the Boundary Fence resembles the boundary line appearing on survey maps of the Properties.” (TACC ¶ 46.) The third amended verified cross-complaint alleges that “J. Reed and Cross-Complainants agreed and accepted the Boundary Fence as the boundary between Cross-Complainants’ property and the Reeds’ property for nearly twenty years.” (TACC ¶ 47.) Plaintiffs now claim they own portion of the land beyond the Boundary Fence, which is approximately 25 feet wide (east to west) and 78 feet long (north to south) and is located on the northwestern corner of the Reed Property (the “Disputed Land”). (TACC ¶ 48.)

On

January 29, 2026, Plaintiffs filed a motion for summary adjudication (the “Motion”). On June 11, 2026, Defendants filed an opposition. On June 22, 2026, Plaintiffs filed a reply.

II.

DEFENDANTS’

OBJECTIONS

Defendants

submit objections to Plaintiffs’ separate statement, arguing it improperly relies on the second amended verified complaint and Plaintiffs’ own responses to discovery. (Defendants’ Objections p. 3.) Defendants argue Plaintiffs may not rely on statements in their own pleading, verified or unverified, to support their burden and cannot rely on their own discovery responses as evidentiary support. (Defendants’ Objections p. 3.)

In

response, Plaintiffs argue the objection is procedurally improper because California Rules of Court, rule 3.1350(e) “does not authorize the filing of objections to a Separate Statement or its individual Statements in the form of a legal argument memorandum.” (Plaintiffs’ Response p. 2.) Plaintiffs argue the objection is “an unauthorized extension of their memorandum of points and authorities, designed to circumvent the 20-page limitation.” (Plaintiffs’ Response p. 2.) Plaintiffs further argue that “[a] properly verified complaint may be treated as a declaration” and “Plaintiffs’ verified discovery responses are the functional equivalent of a declaration.” (Plaintiffs’ Response p. 3.)

California

Rules of Court, rule 3.1354 authorizes written objections to evidence.

California Rules of Court, rule 3.1350(e) does not mention written objections to evidence. Thus, Plaintiffs' argument that California Rules of Court, rule 3.1350, subdivision (e) sets forth the only documents that may be filed with the opposition is not persuasive.

California

Rules of Court, rule 3.1113(g) states "[a] memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper." "A trial court has broad discretion to accept or reject late-filed papers." (Jack v. Ring LLC (2023) 91 Cal.App.5th 1186, 1210, brackets removed.)

Plaintiffs

also submit a separate document objecting to Jose Pasillas' late-filed supplemental declaration. The court concludes Plaintiffs have not been prejudiced by reviewing and responding to Defendants' less than three-page document containing objections to Plaintiffs' separate statement. The court will exercise its discretion and consider Defendants' objections to Plaintiffs' separate statement.

Defendants

rely on College Hospital Inc. v. Superior Court ("College Hospital") (1994) 8 Cal.4th 704, 720, fn. 7 and Great American Ins. Cos. v. Gordon Trucking, Inc. ("Great American") (2008) 165 Cal.App.4th 445, 450. (Defendants' Objections pp. 2-3.)

Plaintiffs

rely on Van Buskirk v. Van Buskirk ("Van Buskirk") (2020) 53 Cal.App.5th 523, 534 and Watts v. Pneumo Abex, LLC ("Watts") (2024) 106 Cal.App.5th 248, 269. (Plaintiffs' Response p. 3.)

College

Hospital, supra, 8

Cal.4th at p. 720, fn. 7 provides that "[i]t is generally understood . . . that a party cannot rely on the allegations of his own pleadings, even if verified, to make or supplement the evidentiary showing required in the summary judgment context."

Van

Buskirk, *supra*, 53

Cal.App.5th at p. 534 provides that “[g]enerally, a properly verified complaint – or in this case a properly verified petition – may be treated as a declaration or affidavit.”

The

Court of Appeal in Van Buskirk considered whether a court had personal jurisdiction, it did not consider motion for summary judgment or a motion for summary adjudication. (Van Buskirk, *supra*, 53 Cal.App.5th at pp. 527, 534-535.) The court will follow the rule as set forth by the Supreme Court of California in *College Hospital* and disregard Plaintiffs’ references to the allegations set forth in the second amended verified complaint.

Great

American, *supra*, 165

Cal.App.4th at p. 450, original italics, provides that “[a]t the trial or any other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party.” The Court further stated that “the responding party may not use its own interrogatory responses in its own favor.” (*Id.*)

Watts,

supra, 106 Cal.App.5th

at p. 269 provides that “[a]dmissions contained in depositions and interrogatories are admissible in evidence to establish any material fact.”

The

court does not interpret Watts as conflicting with Great American.

The Court of Appeal in Watts was considering whether a party could introduce a different party’s interrogatory responses. (Watts, *supra*, 106 Cal.App.5th at p. 269.) The Court cited Code of Civil Procedure section 2030.410 and Evidence Code section 1220. (*Id.* at pp. 268-269.) Code of Civil Procedure section 2030.410 states:

At the trial or any

other hearing in the action, so far as admissible under the rules of evidence, the propounding party or any party other than the responding party may use any answer or part of an answer to an interrogatory only against the responding party.

It is not ground for objection to the use of an answer to an interrogatory that the responding party is available to testify, has testified, or will testify at the trial or other hearing.

Evidence

Code section 1220 states: “[e]vidence of a statement is not made inadmissible by the hearsay rule when offered against the declarant in an action to which he is a party in either his individual or representative capacity, regardless of whether the statement was made in his individual or representative capacity.”

Thus,

Great American and Watts generally stand for the proposition a party, other than the responding party, may use interrogatory responses. Watts does not stand for the proposition the responding party may use their own discovery responses to meet their burden on a motion for summary adjudication. In contrast, the Court in Great American expressly stated a party could not rely on its own interrogatory responses in their own favor.

Thus,

the court will not consider Plaintiffs’ references to their own discovery responses.

III.

PLAINTIFFS’

OBJECTION TO JOSE PASILLAS’ SUPPLEMENTAL DECLARATION

Oppositions

are due to be filed and served at least 20 days before the set hearing. (Code Civ. Proc., § 437c, subd. (b)(2), (f)(2).) Defendants filed and served Jose Pasillas’ supplemental declaration only 19 days before the set hearing. Plaintiffs request the court strike the supplemental declaration because it was filed late. (Plaintiffs’ Objection to and Motion to Strike Late-Filed Supplemental Declaration pp. 2-3.) The court grants that request and does not consider Jose Pasillas’ supplemental declaration.

IV.

PLAINTIFFS’

OBJECTIONS TO DEFENDANTS’ EVIDENCE:

Plaintiffs

submit objections to Jennifer Pasillas' and Jose Pasillas' declarations.

(Plaintiffs' Objections p. 2.)

Evidence

Grounds

Ruling

Jennifer

Pasillas Declaration ¶ 4, "The Reeds understand my husband is required to regularly travel nationally and internationally in connection with his work obligations, often for up to six (6) months out of the year."

Relevance;

lack of foundation.

Sustained

Jennifer

Pasillas Declaration ¶ 10, "While the Reeds can access their entire Property without utilizing the Reed Gate or our private driveway, they cannot access the Disputed Land from their own Property."

Lack

of foundation; misleading.

Overruled

Jennifer

Pasillas Declaration ¶ 11, "The Reeds have always known this, as is evidenced by their actions."

Lack

of foundation; speculation; conclusory.

Sustained

Jennifer

Pasillas Declaration ¶ 12, "Attached hereto as Exhibit 9 is an illustration depicting the location of the temporary chain-link gate leading to our private driveway located approximately 15 feet below the start of our private driveway towards our home, and the beginning of the Coyles' private driveway."

Secondary
evidence rule; hearsay.

Overruled

Jennifer
Pasillas Declaration ¶ 12, "While I am only a layperson, it is astounding to me that justice would permit the Reeds to argue that a permanent encroachment that they continue to maintain (which unlawfully encroaches on easement rights of others) supports their position that the beneficiaries of the easement have abandoned their easement rights. Where is the justice in that!"

Improper
lay opinion; argumentative; relevance.

Sustained

Jennifer
Pasillas Declaration ¶ 13, "I suffer from a chronic ailment that, when I experience flare-ups, may require medical emergency intervention. For this reason, it is vitally important that ingress and egress be clear for me to leave for emergency medical treatment or emergency vehicles to use the shared road leading to our private driveway to get to our home."

Relevance

Overruled

Jennifer
Pasillas Declaration ¶ 13, "The Coyles are elderly and have had health issues in recent years"

Lack
of foundation; relevance; speculation.

Sustained

Jennifer

Pasillas Declaration ¶ 13, "Referring to Exhibit B hereto, the truck parked next to the Oleander not only obstructs ingress and egress to our private driveway for our own vehicles, but it certainly would make it more difficult for emergency vehicles and fire trucks to get to our home as well as the Coyles' home."

Secondary

evidence rule; lack of foundation; lack of authenticity; relevance; speculation; misleading; hearsay.

Sustained

Jennifer

Pasillas Declaration ¶ 13, "If the encroachment did not exist, there would be no ingress or egress problems for cars, trucks or emergency vehicles even if the vehicles had to encroach unlawfully in the fire lane."

Lack

of foundation; speculation; misleading; improper lay opinion; relevance.

Sustained

Jennifer

Pasillas Declaration ¶ 13, "The Reeds' maintenance of the fence and Oleanders encroaches on the Parcel C easement and creates an ongoing health and safety hazard."

Lack

of foundation; improper lay opinion; speculation; relevance.

Sustained

Jennifer

Pasillas Declaration ¶ 13, "The inconvenience caused by the Reeds' permitting their service trucks and guests to park or stage unlawfully in the fire lane exacerbates the health and safety hazard."

Improper

lay opinion; speculation; relevance.

Sustained

Jennifer

Pasillas Declaration ¶ 15, "...the Reeds have driveways to their guest house and main house that can accommodate their vendors and guests. Their two driveways, especially the one to their principal residence, are large enough to accommodate the vehicles of their vendors, guests and others."

Relevance;

speculation; lack of foundation

Sustained

Jennifer

Pasillas Declaration ¶ 16, "We believe that the reason the Reeds object to our installation of a gate near the top of our private driveway is that they plan to place an additional dwelling unit ('ADU') on their property. We believe that they want to construct a utility road from below where our chain-link gate is located to the ADU. And we believe that they then want to either rent out the ADU or split their lot and sell the ADU."

Relevance;

speculation; lack of foundation.

Sustained

Jose

Pasillas Declaration ¶ 4, "Based on the Survey, the Reeds knew that the Disputed Land was part of their Property but concealed this information from Jennifer and me for at least eight years."

Lack

of foundation; speculation.

Sustained

Jose

Pasillas Declaration ¶ 5, "The Reeds can view the Disputed Land from their Property."

Lack

of foundation; speculation; relevance.

Sustained

Jose

Pasillas Declaration ¶ 11, "The only way the Reeds can access the Disputed Land is by entering onto our private property."

Speculation;

lack of foundation.

Overruled

Jose

Pasillas Declaration ¶ 14, "My wife suffers from a chronic ailment that, when she experiences flare-ups, requires that ingress and egress be clear for her to leave for emergency medical treatment or emergency vehicles to use the shared road leading to our private driveway to get to our home."

Speculation;

misleading; relevance.

Overruled

Jose

Pasillas Declaration ¶ 14, "...it certainly would make it more difficult for emergency vehicles and fire trucks to get to our home as well as the Coyles' home."

Speculation;

misleading; relevance; lack of foundation.

Sustained

Jose

Pasillas Declaration ¶ 14, "If the encroachment did not exist, there would be no ingress or egress problems for cars, trucks or emergency vehicles even if the vehicles had to encroach unlawfully in the fire lane."

Speculation;
misleading; relevance; improper lay opinion.

Sustained

Jose

Pasillas Declaration ¶ 14, "The inconvenience caused by the Reeds' permitting their service trucks and guests to park or stage unlawfully in the fire lane exacerbates the health and safety hazard."

Speculation;
misleading; relevance; improper lay opinion.

Sustained

Jose

Pasillas Declaration ¶ 15, "We believe that the reason the Reeds object to our installation of a gate near the top of our private driveway is that they plan to place an additional dwelling unit ('ADU') on their property. We believe that they want to construct a utility road from below where our chain-link gate is located to the ADU. And we believe that they then want to either rent out the ADU or split their lot and sell the ADU."

Relevance;
speculation; lack of foundation.

Sustained

Jose

Pasillas' Supplemental Declaration

Untimely

Sustained

Ex.

12

Hearsay;

lack of foundation; lack of authenticity; untimely.

Overruled

Ex.

13

Hearsay;

lack of foundation; lack of authenticity; untimely.

Sustained

Ex.

14

Hearsay;

lack of foundation; lack of authenticity; untimely.

Sustained

Ex.

15

Hearsay;

lack of foundation; lack of authenticity; untimely.

Sustained

V.

TIMELINESS

"A motion for

summary adjudication may be made by itself or as an alternative to a motion for summary judgment and shall proceed in all procedural respects as a motion for summary judgment." (Code Civ. Proc., § 437c, subd. (f)(2).)

A

motion for summary judgment “may be made at any time after 60 days have elapsed since the general appearance in the action or proceeding of each party against whom the motion is directed or at any earlier time after the general appearance that the court, with or without notice and upon good cause shown, may direct.” (Code Civ. Proc., § 437c, subd. (a)(1).) “The motion shall be heard no later than 30 days before the date of trial, unless the court for good cause orders otherwise. The filing of the motion shall not extend the time within which a party must otherwise file a responsive pleading.” (Code Civ. Proc., § 437c, subd. (a)(3).)¿

¿

Per Code of Civil

Procedure section 437c, subdivisions (a)(2), (b)(2) and (4):

¿

Notice of the motion and supporting

papers shall be served on all other parties to the action at least¿81¿days before the time appointed for hearing.

If the notice is served by mail, the required¿81-day¿period

of notice shall be increased by 5 days if the place of address is within the State of California, 10 days if the place of address is outside the State of California but within the United States, and 20 days if the place of address is outside the United States. If the notice is served by facsimile transmission, express mail, or another method of delivery providing for overnight delivery, the required¿81-day¿period of notice

shall be increased by two court days . . . An

opposition to the motion shall be served and filed not less than¿20¿days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise . . . A reply to the opposition shall be served and filed by the moving party not less than¿11¿days preceding the noticed or continued date of hearing, unless the court for good cause orders otherwise.¿

Plaintiffs

served Defendants with the Motion by electronic service on January 29, 2026.

(Motion pdf pp. 25-26.) January 29, 2026, was more than 81-days, plus two court days for electronic service, before July 1, 2026. Thus, the Motion was timely filed and served.

The

opposition and reply were also timely filed and served.

VI.

LEGAL STANDARD

“A party may move

for summary adjudication as to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty, if the party contends that the cause of action has no merit, that there is no affirmative defense to the cause of action, that there is no merit to an affirmative defense as to any cause of action, that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code, or that one or more defendants either owed or did not owe a duty to the plaintiff or plaintiffs. A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty.” (Code Civ. Proc. §437c, subd. (f)(1).)

“A defendant seeking summary judgment has met the burden of showing that a cause of action has no merit if that party has shown that one or more elements of the cause of action cannot be established or that there is a complete defense to that cause of action[.]” (Raghavan v. Boeing Co. (2005) 133 Cal.App.4th 1120, 1132, brackets removed.) “The party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact; if he carries his burden of production, he causes a shift, and the opposing party is then subjected to a burden of production of his own to make a prima facie showing of the existence of a triable issue of material fact....” (Id., brackets removed) “How the parties moving for, and opposing, summary judgment may each carry their burden of . . . production depends on which would bear what burden of proof at trial.” (Id., original italics, brackets removed.) “The same principles apply to motions for summary adjudication.” (Id.)

VII.

DISCUSSION

Issues

Raised in the Motion:

Plaintiffs

move for summary adjudication as to the second amended verified complaint's fifth cause of action for quiet title as to the reciprocal easement, third amended verified cross-complaint's first cause of action for quiet title to real property (easement rights by express grant), and third amended verified cross-complaint's second cause of action for quiet title to real property (agreed boundary). (Motion p. 2.)

Plaintiffs'

reply clarifies the Motion concerns only two issues. First, the reciprocal easement claims, that turn on whether Defendants violate the reciprocal easement "by maintaining and planning to erect a permanent, locked Security Gate across it." (Reply p. 5.) Second, "whether the undisputed facts entitle Plaintiffs to judgment on Defendants' agreed-boundary claim. (Reply p. 5.)

As

for the second amended verified complaint's fifth cause of action for quiet title as to the reciprocal easement, Plaintiffs "seek to quiet title to their rights of ingress and egress over the Reciprocal Easement area including the portion of the Reciprocal Easement area which has been blockaded by the Pasillas Defendants' or their Agents' installation of a fence and locked security gate." (SAC ¶ 44.) Plaintiffs allege that "[t]he Pasillas Defendants now assert that they may substantially and unreasonably burden Plaintiffs ingress and egress rights through the installation and maintenance of a fence and locked gate within the Reciprocal Easement area" and "seek a determination that the Pasillas Defendants' must remove and may no longer maintain fencing and a locked gate within the Reciprocal Easement area." (SAC ¶¶ 46-47.)

As

for the third amended verified cross-complaint's first cause of action for quiet title to real property (easement rights by express grant), Defendants state they:

[H]ereby seek and are

entitled to have title quieted as of March 15, 2002, in their favor against the assertion of any claims, right, title, estate, lien or interest whatsoever of Cross Defendants, or any of them, in contravention of Cross-Complainants' rights to install and maintain the security gate, fence, and ancillary improvements more particularly described at paragraphs 39 and 40 above, in the approximate location of the current temporary gate and fence, because such security gate

and fence present no practical or actual impediment of basic ingress and egress to and from the Reed Property or the Coyle Property. Cross-Complainants seek to have title quieted as of March 15, 2002, because it is the date Cross-Complainants acquired rights to the Pasillas Property.

(TACC
¶ 67.)

As
for the third amended verified cross-complaint's second cause of action for quiet title to real property (agreed boundary), Defendants "seek to quiet title to the Disputed Land, including any part lying between the agreed-on boundary line and that line claimed by the Reeds, establishing that all rights, titles, estates, and interests in the Disputed Land are vested exclusively in Cross-Complainants, and that Cross Defendants hold no rights, titles, estates, or interests in and to the Disputed Land." (TACC ¶ 79.)

Reciprocal
Easement:

Plaintiffs
seek "a declaration quieting title in accordance with the express terms of the Reciprocal Easement and confirming that Defendants have no right to construct or maintain a locked gate across the Shared Driveway at the current location."
(Motion p. 14.)

First,
Plaintiffs argue that the easement's express language does not authorize Defendants' gate because Defendants "seek, in effect, to convert a shared ingress/egress easement into a private, controlled access point subject to their unilateral discretion" which is inconsistent with the easement's text and purpose, which is to provide a shared access corridor benefitting the three parcels. (Motion p. 15.) Plaintiffs argue that "[b]ecause the express grant is limited to ingress and egress and contains no authorization for Defendants' security gate, the Court should conclude as a matter of law that Defendants' claimed right to maintain a gate at the current location fails, and quiet title should be entered in Plaintiffs' favor on both quiet title causes of action."
(Motion p. 15.)

Second,

Plaintiffs argue that even if the gate is not expressly prohibited, the gate unreasonably interferes with Plaintiffs' right to passage because the gate delays, impedes, or conditions passage by the gate's presence and Defendants' control over it. (Motion pp. 16-17.) Plaintiffs cite *Van Klompenburg v. Berghold* ("Van Klompenburg") (2005) 126 Cal.App.4th 345, 348-349 as standing for the proposition that "California courts have repeatedly held that locked gates, or gates that materially burden access, constitute an unreasonable interference with easement rights, particularly where the gate is placed for the servient owner's convenience and imposes delay, inconvenience, or hazard on the dominant owner." (Motion p. 16.)

In opposition, Defendants argue Plaintiffs' Motion fails because Defendants' gate has never been locked. (Opposition p. 12.) Defendants argue that California law permits them to install a gate and Plaintiffs' reliance on *Van Klompenburg*, supra, 126 Cal.App.4th 345 is misplaced because the written easement in that case required the "roadway be 'kept open' and 'wholly unobstructed.'" (Opposition p. 13.) Defendants further argue the Court of Appeal's decision in *Van Klompenburg*, supra, 126 Cal.App.4th 345 "turned on the express terms of the easement that had been granted." (Opposition p. 14.)

In reply, Plaintiffs argue it is immaterial that the temporary gate is unlocked because Defendants' "First Cause of Action seeks a permanent injunction forever barring Plaintiffs from using a portion of the Reciprocal Easement area that lies on the Pasillas Property . . . and Plaintiffs' Fifth Cause of Action seeks prospective relief enjoining Defendants from excluding them from the Reciprocal Easement via a permanent locked gate." (Reply p. 7, original italics.) Plaintiffs also argue "there is no dispute that Defendants' planned future gate will be locked" and Defendants' evidence they intend to provide Plaintiffs an access code is irrelevant because the pleadings frame the issues for summary adjudication. (Reply p. 8, original italics.) Finally, Plaintiffs argue Defendants misinterpret *Van Klompenburg*, supra, 126 Cal.App.4th 345 because that case "turned not on whether mere erection of a gate was precluded by the easement terms, but whether the gate would 'delay, impede and hinder' use and enjoyment of the easement." (Reply p. 9.)

"An easement is a restricted right to specific, limited, definable use or activity upon another's property, which right must be less than the right of

ownership.” (*Scruby v. Vintage Grapevine, Inc.* (1995) 37 Cal.App.4th 697, 702, original italics.)

“It is fundamental that the language of a grant of an easement determines the scope of the easement.” (*Van Klompenburg, supra*, 126 Cal.App.4th at p. 349.) “[U]nless it is expressly stipulated that the way shall be an open one, or it appears from the terms of the grant or the circumstances that such was the intention, the owner of the servient estate may erect gates across the way, if they are constructed so as not unreasonably to interfere with the right of passage.” (*Id.* at p. 350.) But “where an easement under a grant is specific in its terms, ‘it is decisive of the limits of the easement[.]’” (*Id.*, brackets removed.)

In *Van Klompenburg, supra*, 126 Cal.App.4th at p. 348, the plaintiffs’ predecessors in interest were granted “the right to use, travel over, upon and along, and enjoy as and for a private roadway only, for all time ... the same to be kept open as a private roadway and wholly unobstructed . . .” The defendants installed two locked gates across the easement. (*Id.*) There were no gates or barriers on or across the easement before the defendants installed the gates. (*Id.*) The plaintiffs sought “an order quieting title to the easement and directing defendants to ‘dismantle and remove’ the gates.” (*Id.*) The trial court ruled in the plaintiffs’ favor. (*Id.*)

The Court of Appeal agreed with the trial court’s finding that “the specific language of the easement (‘wholly unobstructed’) prevailed over the general rule that the owner of the servient tenement . . . may make use of the land that does not interfere unreasonably with the easement.” (*Van Klompenburg, supra*, 126 Cal.App.4th at p. 359, brackets removed.) The Court noted that the easement stated the roadway was to be “kept open” and “wholly unobstructed.” (*Id.* at p. 350.) The Court then held that “the trial court was correct in constraining its analysis to the language of the indenture in determining whether defendants were permitted to maintain closed gates across the easement.” (*Id.*) The Court further held the trial court correctly interpreted the indenture “as prohibiting defendants from maintaining gates across the easement.” (*Id.*) The Court noted that “[e]xcept during periods of intense activity (i.e., during the grape harvest), each time plaintiffs, their guests or their agents wish to visit plaintiffs’ property,

they must stop, get out of their vehicles, open at least one gate, and once through, repeat the process to close the gate” and “plaintiffs’ guests and agents who do not have keys will have to make arrangements to obtain them before visiting the property.” (Id.) The Court stated “[t]here is no question that under the circumstances of this case a locked or closed gate constitutes an obstruction in that it delays, impedes and hinders plaintiffs’ use and enjoyment of their easement.” (Id.)

Plaintiffs

appear to argue *Van Klompenburg*, supra, 126 Cal.App.4th stands for the broad proposition that any obstruction that delays, impedes, and hinders use and enjoyment of an easement is prohibited. (Reply pp. 8-9.) But *Van Klompenburg*, supra, 126 Cal.App.4th does not stand for such a broad proposition. The Court stated in *Van Klompenburg*, supra, 126 Cal.App.4th at p. 350 that the general rule is “unless it is expressly stipulated that the way shall be an open one, or it appears from the terms of the grant or the circumstances that such was the intention, the owner of the servient estate may erect gates across the way, if they are constructed so as not unreasonably to interfere with the right of passage.” (Id. at p. 340, brackets removed.) That general rule did not apply in *Van Klompenburg* because the easement expressly provided that the roadway was to be “kept open” and “wholly unobstructed.” (Id.) After interpreting that language, the Court held that the locked gate was impermissible. (Id.)

Plaintiffs

point to no language in the present easement that is analogous to the language in *Van Klompenburg*, supra, 126 Cal.App.4th. Accordingly, the court concludes that the general rule, as stated in *Van Klompenburg*, supra, 126 Cal.App.4th at p. 350 applies here, and unless the parties stipulated the way to be open, “or it appears from the terms of the grant or the circumstances that such was the intention, the owner of the servient estate may erect gates across the way, if they are constructed so as not unreasonably to interfere with the right of passage.”

“[I]n

the absence of any express language in the grant bearing upon the question of the right to maintain gates ‘the courts ordinarily treat it as a question of fact whether gates . . . will unreasonably interfere with the exercise of the easement[.]’” (*McCoy v. Matich* (1954) 128 Cal.App.2d 50, 53.)

As

noted, Plaintiffs point to no express language in the easement bearing on the issue of whether Defendants may maintain gates or language analogous to the language at issue in *Van Klompenburg*. Plaintiffs argue that, like *Van Klompenburg*, *supra*, 126 Cal.App.4th, the gate is locked, and “[e]very time Plaintiffs, their guests, or their vendors seek to access the lower portion of the Reed Property through the Shared Driveway and Reed Gate, their passage is delayed, impeded, or conditioned by the presence of the gate and Defendants’ control over it.” (Motion pp. 16-17.)

Plaintiffs

relies on allegations in their second amended verified complaint to assert the gate is locked. (Plaintiffs’ Separate Statement No. 34.) Even to the extent the court considered those allegations as evidence, Defendants present evidence the gate is not and has not been locked (Defendants’ Separate Statement No. 29, Jose Pasillas Declaration ¶¶ 8-9.) Defendants also present evidence that they intend to build a permanent gate and intend to give Plaintiffs the security code for that gate. (Defendants’ Separate Statement No. 30, Jose Pasillas Declaration ¶¶ 9-10.) Whether an unlocked, or locked but able to be accessed, gate is an unreasonable interference with the exercise of the easement is a question of fact. Accordingly, the court concludes there are triable issues of material fact here regarding whether the gate unreasonably interferes with Plaintiffs’ exercise of the easement.

Agreed-Boundary

Claim:

Plaintiffs

argue the agreed-boundary doctrine does not apply here because there is no evidence of uncertainty concerning the legal boundary and a boundary-fixing agreement. (Motion p. 22.) Plaintiffs argue there is “no evidence that [Defendants] or [Plaintiffs] (or their predecessors) ever discussed, negotiated, or agreed to move the boundary to the fence line or to any other location” and that “Assessor Parcel Map No. 7975, recorded in 1977, clearly depicts the Disputed Land as a part of the Reed Property.” (Motion p. 23.)

In

opposition, Defendants argue that Jose Pasillas purchased the Pasillas Property in 2002 and Plaintiffs purchased their property in 2003, and from 2002 to 2022, Plaintiffs “believed that the Disputed Land was part of the Pasillas Property.”

(Opposition pp. 22-23.) Defendants note Plaintiffs commissioned a survey in 2014 but concealed the survey from Defendants until March 2022. (Opposition p. 23.) Defendants argue that in *Bryant v. Blevins* (“Bryant”) (1994) 9 Cal.4th 47, 54, the Supreme Court of California “refused to limit application of the agreed-boundary doctrine if, at the time of the neighbors’ agreed to the boundary line, they were ignorant of the true boundary and the neighbors agreed to the boundary line for a period longer than the five-year statute period of limitations for adverse possession.” (Opposition pp. 23-24.)

In reply, Plaintiffs argue Defendants have no evidence of an agreement to fix the boundary. (Reply p. 10.) Plaintiffs argue this case is like *Bryant*, supra, 9 Cal.4th at p. 47, where the parties acquiesced to a chain-link fence while one party maintained and improved the land on his side “even though it belonged to his neighbor.” (Reply p. 11.) Finally, Plaintiffs argue Defendants have no evidence of uncertainty. (Reply p. 12.)

The agreed boundary doctrine may be invoked when there is: (1) “an uncertainty as to the true boundary line”; (2) “an agreement between the coterminous owners fixing the line”; and (3) “acceptance and acquiescence in the line so fixed for a period equal to the statute of limitations or under such circumstances that substantial loss would be caused by a change of its position.” (*Bryant*, supra, 9 Cal.4th at p. 55.) “[W]hen existing legal records provide a basis for fixing the boundary, there is no justification for inferring, without additional evidence, that the prior owners were uncertain as to the location of the true boundary or that they agreed to fix their common boundary at the location of a fence.” (*Id.* at p. 58.)

In *Bryant*, supra, 9 Cal.4th at pp. 49-50, the Supreme Court of California held that the agreed-boundary doctrine is inapplicable when there are legal records fixing the boundary and the party relying on the agreed-boundary doctrine “fails to establish that uncertainty as to the location of the true boundary led to an agreement between the landowners to create a boundary at an agreed-upon location.”

Plaintiffs’ separate statement as to this issue mostly cites to the third amended verified cross-complaint, second amended verified complaint, and Plaintiffs’ discovery

responses. The court considers the remaining evidence.

Plaintiffs

submit Parcel 1 of Parcel Map No. 7975, Book 88 Pages 41 and 42 of Los Angeles County Parcel maps, which was recorded in 1977. (Lopez Declaration ¶ 6; Ex. J pdf pp. 107-108.) Plaintiffs' counsel states Parcel Map No. 7975 "depicts the Disputed Land as part of the Reed Property . . ." (Lopez Declaration ¶ 6.)

James

Reed also submits a declaration stating that since moving onto the property, James Reed "paid the property taxes assessed for the entire parcel, including the area identified as the Disputed Land." (Reed Declaration ¶ 3.) Plaintiffs argue this fact "demonstrates [Plaintiffs'] understanding – and the County's understanding – that the strip lay within the Reed Property." (Motion p. 23.) The court is not persuaded that the fact Plaintiffs paid property taxes for the entire parcel shows there is no evidence the prior owners were uncertain as to the location of the true boundary or that they agreed to fix their common boundary at the fence's location.

The

evidence submitted by Plaintiffs does not show that there is no evidence the prior owners were uncertain as to the location of the true boundary or that they agreed to fix their common boundary at the location of a fence. Accordingly, the court determines Plaintiffs have not met their burden of showing no triable issues of material fact as to this issue, and the burden does not shift to Defendants.

VIII.

CONCLUSION

For

the foregoing reasons, the Motion is denied.

Dated: August 13, 2026 _____ Hon. Eric Harmon

Judge

of the Superior Court